How to buy property in Mexico as a foreigner

Updated October 26, 2026

Yes, a foreigner can buy property in Mexico. What changes, especially on the coast, is how it is acquired. This guide summarizes how it works, step by step, and what to check before you pay.

It is general information to orient you. Every purchase has its own details, and rules and amounts change: before you sign, confirm everything with a notary public and your advisor.

What is the restricted zone?

Mexico's Constitution sets a strip where foreigners cannot directly own real estate: up to 50 kilometres from the coast and 100 kilometres from the borders. Rosarito, on the coast of Baja California, is inside it.

That does not stop you from buying. Inside the restricted zone, property is acquired through a bank trust (fideicomiso).

The bank trust (fideicomiso)

A Mexican bank acts as trustee and holds the title to the property for the buyer, who is the beneficiary of the trust. In practice, the buyer can use and occupy the property, rent it, sell it, transfer it and name who inherits it.

A residential trust is granted for up to 50 years and is renewable. The bank charges to set it up and an annual fee; the amounts depend on the bank. The notary public handles the permit required from the Ministry of Foreign Affairs.

The steps of the purchase

1. Set your budget and what you are looking for: type of property, area and use (to live in, rent or invest).
2. Visit and choose. With your agent you review options and, when one fits, you make an offer.
3. Purchase promise and deposit: price, conditions and dates are agreed, and a deposit is paid that the contract must protect.
4. Legal review: title, certificate of no liens, property tax and utilities up to date, and that the seller owns the property and is able to sell it.
5. Appraisal and notary: the appraisal is done and the notary public prepares the deed and calculates taxes and fees.
6. Trust: if the property is in the restricted zone, it is set up with the bank.
7. Signing and payment: the deed is signed before the notary, the balance is paid and taxes and fees are covered.
8. Registration and handover: the deed is recorded in the Public Registry of Property, you receive the keys and the utilities move to your name.

What is checked before you pay

- The deed (title) in the seller's name.
- The certificate of no liens: no mortgages or seizures.
- Property tax paid and the cadastral key.
- For land: that it is not ejido land, or has been regularized, and its land use.
- For a condo: the rules, the maintenance fee and that it is up to date.
- The seller's identification and authority to sell, and their spouse's consent where it applies.
- Water and electricity up to date.

Costs to consider

On top of the price there are notary fees, the property acquisition tax (its rate depends on the municipality and the state), registry fees, the appraisal and, when it applies, the cost of setting up the trust. Always ask for a written breakdown before you make an offer.

After buying there are yearly costs: property tax, the trust's annual fee and, in a condo, the maintenance fee.

Can it be financed?

Financing for foreigners is usually more limited than in the United States. Many purchases are paid in cash; some developers and sellers offer payment plans, and there are bank options. Talk to a financial advisor before you commit. Real estate payments are made by bank transfer, and the notary tells you how.

How we help

We are a bilingual agency in Playas de Rosarito. We go with you from the first visit to the handover of the keys, help you request and review the documents, and coordinate the paperwork with the notary and the bank. We also design and build, in case you prefer to build your home on a lot.

Legal questions about your purchase?

Verónica Ruiz Olvera, El Casa Rosarito's legal advisor, can point you to the documents and steps for your case. Message her on WhatsApp or learn about the legal advisory service.

Message Verónica on WhatsApp Learn about legal advisory

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> This guide is informational and does not replace legal, tax or financial advice. Laws, amounts and procedures change and vary by municipality: confirm them with a notary public before you sign.

El Casa Rosarito · Local 19 Módulo A, Quinta Plaza, Playas de Rosarito, B.C.
WhatsApp +52 661 125 6107 · jorgeelcasarosarito@gmail.com · elcasarosaritogroup.com